AcreForge
Ownership, Protection & Launch Packet

U.S. Land & Estate Planner (working name, not yet cleared)

Important: This packet is a practical guide and set of fill-in templates prepared by an AI assistant. It is **not legal advice** and does not create an attorney-client relationship. Nothing in it has been filed, registered or purchased. Patent, trademark and entity decisions have real legal consequences; have a licensed U.S. attorney review before you rely on or sign anything.

Contents: 1) Honest summary of what you can protect • 2) Step-by-step checklist • 3) Domain plan • 4) Name clearance • 5) Copyright registration • 6) Patent reality check • 7) Business entity • 8) Third-party data and license obligations • 9) Fill-in templates • 10) Costs and timeline

1. What you can actually protect

Asset	Protection	How	Status
Your source code, text, design, original graphics	Copyright (automatic on creation)	Optional registration at copyright.gov; needed before you can sue for infringement in the U.S.	Not registered
Brand name and logo	Trademark (common-law by use; federal by USPTO)	Clearance search first, then USPTO application	Name NOT cleared
Domain name	Contract right with a registrar (not IP by itself)	Register through an ICANN-accredited registrar in YOUR name	Not purchased
Unique technical method	Patent (only if novel, non-obvious and not an abstract idea)	Patent attorney; provisional then non-provisional	Not filed; see section 6
Customer data and know-how	Trade secret / contracts	Access controls, NDAs, Terms of Service	Local-first design helps

Bottom line: Copyright and a trademark are your realistic, affordable protections. Software patents are expensive, slow and frequently rejected for being 'abstract'. Do not tell anyone the app is 'patented' or 'patent pending' unless an application has actually been filed.

2. Do-this-in-order checklist

#	Step	Who / where	Approx. cost
1	Decide the final name; run clearance (section 4)	You + USPTO search + attorney	$0 to $500
2	Form an LLC (section 7) so the business, not you personally, owns the IP and takes the risk	Your state's Secretary of State; get EIN free at irs.gov	$50 to $500 by state
3	Register the domain in the LLC or your name (section 3)	Registrar of your choice	$10 to $20 per year
4	Sign the IP assignment (template A) moving everything you created to the LLC	You	$0
5	Add copyright notice and Terms/Privacy to the site (already partly done)	Me, on request	$0
6	Register copyright (section 5)	copyright.gov	$45 to $65
7	File trademark once the name is cleared	uspto.gov	$350 per class
8	Consider a patent attorney consult only if you believe something is truly novel	Registered patent attorney	Consult often free to $500
9	Business bank account, sales-tax and Stripe setup under the LLC	Bank, state, Stripe	Varies

3. Domain plan

I cannot buy a domain for you (it needs your payment and identity). To do it yourself:

- Pick 3 to 5 candidates such as the brand name with .com, .app or .land. Check availability at a registrar (Cloudflare Registrar, Namecheap, Porkbun, Google-successor Squarespace Domains).
- Before buying, search the name at the USPTO trademark database and a general web search to avoid conflicts (section 4). I previously noted 'AcreForge' may conflict with an existing business.
- Register in your own legal name or the LLC's name, with **your** email as the registrant contact. Never let a developer or a third party be the registrant.
- Turn on WHOIS privacy, auto-renew, registrar lock and two-factor sign-in. Register for 2+ years.
- Point it at Netlify: in Netlify go to Domain management, add the custom domain, then follow the DNS records it shows. Netlify issues the HTTPS certificate free.
- Optionally buy common misspellings and the .net/.org to protect the brand.
- Dispute risk: a domain is not a trademark. Do not register a name that is another company's mark; that can lead to a UDRP complaint and loss of the domain.

4. Name clearance (before you spend on branding)

- USPTO Trademark Search (tmsearch.uspto.gov): look for the name and look-alikes in classes 9, 42 and 36.
- Search state business registries, Google, app stores, GitHub, social handles and domain availability.
- If a similar mark exists for software or planning services, choose a different name. A cheap attorney clearance opinion is worth it.
- File 'intent to use' (1(b)) if you have not launched under the name, or 'use in commerce' (1(a)) once you have sold or offered it publicly.
- Use the TM symbol now; use the circled R only after USPTO registration.

5. Copyright registration

- You own the code and original content you or the assistant produced for you under your direction, subject to the points below. Copyright in purely AI-generated material may not be registrable; the U.S. Copyright Office requires disclosure of AI-generated content and protects human authorship (your selection, arrangement, edits and original contributions).
- Register as a 'computer program' at copyright.gov (Standard Application). Deposit identifying portions of the source (first and last 25 pages, trade-secret portions may be redacted).
- Add a notice in the footer: 'Copyright (c) 2026 [Owner or LLC name]. All rights reserved.'
- Keep dated copies of your versions. CHANGELOG.md in this project helps as evidence.

6. Patent reality check

A patent requires an invention that is new, non-obvious, useful and not an abstract idea. After the Supreme Court's *Alice* decision, many pure-software and business-method claims are rejected. A land-planning calculator that overlays maps, estimates costs and prints plans is made of well-known techniques, so a strong utility patent is unlikely and could cost $10,000 to $25,000 or more with a multi-year process.

- **Deadline warning:** In the U.S. you have one year from your first public disclosure, sale or offer to file. The app is already public on Netlify, so that clock may already be running. Ask an attorney promptly if you want to pursue this.
- A **provisional application** (about $65 to $130 USPTO fee for micro/small entity, plus attorney time) holds a filing date for 12 months. It is not examined and does not make anything 'patented'.
- Foreign rights are usually lost by prior public disclosure.
- Better value: trademark the brand, copyright the code, keep any special logic as a trade secret, and build a strong user base.
- Find a registered attorney or agent through the USPTO Patent Practitioner search, or free help through USPTO pro bono programs and your state's inventor assistance groups.

7. Business entity

- An LLC is typical for a solo founder: liability protection, simple taxes. Form it in your home state unless an attorney advises otherwise.
- Get a free EIN at irs.gov. Open a business bank account. Keep business money separate.
- Check state requirements: annual report, registered agent, sales-tax rules for digital products.
- If you take payments, Stripe needs your legal entity, address and bank account. Payments in the app remain inactive until you finish this and approve activation.
- A fundraiser (GoFundMe) must be accurate about what donors receive; the draft in CAMPAIGN.md is unpublished.

8. Third-party data and license obligations

You may legally make money from the app only if you follow the terms of what it uses. Verified items to review:

Component	Obligation (summary, confirm current terms)
OpenStreetMap data (via Overpass)	ODbL license: show 'Data (c) OpenStreetMap contributors' attribution. Public Overpass servers have fair-use limits; heavy commercial use needs your own server or a paid provider.
USGS National Map imagery/topo	U.S. government data, generally public domain; credit USGS and check the service's current use policy and rate limits.
AWS Terrain Tiles (Terrarium)	Check the dataset's attribution requirements (they combine several sources) and keep the credit line.

Component	Obligation (summary, confirm current terms)
Census state boundaries	Public domain U.S. government data.
MapLibre GL JS	BSD-3 license: keep the license text with the vendored copy.
Stripe	Follow Stripe Services Agreement and restricted-business rules.
County parcel data you import	Varies by county: many forbid resale or require a license. The app imports user-supplied files locally; do not redistribute them.

Action for me to do next, if you approve: add a visible 'Map data' attribution line, a third-party notices page and a copyright footer to the site.

9. Fill-in templates (have an attorney review)

Template A: Intellectual Property Assignment (founder to company)

This Assignment is made on [DATE] between [YOUR FULL LEGAL NAME] ('Assignor') and [LLC NAME], a [STATE] limited liability company ('Company').

1. **Assignment.** Assignor assigns to Company all right, title and interest worldwide in the software, source code, designs, text, data compilations, documentation, trade names, domain names and related goodwill known as [APP NAME] (the 'Work'), including all copyrights and any patent rights, if any.

2. **Representations.** Assignor created the Work or has rights to assign it, and has not knowingly included material that infringes another party's rights, other than third-party components used under their licenses.

3. **Further assurances.** Assignor will sign further documents reasonably needed to perfect Company's rights.

4. **Governing law.** [STATE].

Signed: _____ Assignor Date: _____ _____
Company by: [NAME], Member

Template B: Terms of Service outline

- Who we are, contact email, effective date.
- What the service is: planning and visualization only; not engineering, surveying, legal, tax, zoning, septic/well, flood or building-code advice.
- User responsibility: verify with licensed professionals and the local county before building or buying land.
- Accounts and payments (when enabled): pricing, renewals, refunds, cancellation, taxes.
- User content: stays with the user; limited license for us to process it to run the service.
- Acceptable use and third-party data terms.
- Disclaimers, limitation of liability, indemnity, termination, governing law and dispute process.
- Changes to terms and how users are notified.

Template C: Privacy policy outline

- Local-first: project data stays in the user's browser unless they export it.
- What is sent out: only visible map bounds to public map services after the user opts in; Stripe handles payment data.
- No sale of personal data; contact for deletion requests; retention; children under 13 not targeted.
- Cookies/analytics (none currently); state privacy rights (e.g., California CCPA/CPRA) when thresholds apply.

Template D: Trademark worksheet

Item	Fill in
Mark (word or logo)	
Owner (LLC)	
Goods/services	Downloadable and online software for land and property planning (class 9/42)
First use in commerce date	
Specimen	Screenshot of site with the mark and a way to use/buy
Search results reviewed	

Template E: Domain ownership record

Item	Fill in
Domain	
Registrar	
Registrant (legal owner)	
Account email and 2FA method	
Registered / renews on	
DNS host (Netlify)	

10. Rough costs and timeline

Item	Cost	Time
Domain (.com)	$10 to $20 per year	Minutes
LLC formation	$50 to $500 plus annual fee in some states	Days to weeks
EIN	Free	Same day
Copyright registration	$45 to $65	Weeks to months
Trademark (one class)	$350 plus attorney if used	About 8 to 14 months
Provisional patent	$65 to $130 USPTO fee plus attorney	Filed in days; valid 12 months
Utility patent	$10,000 to $25,000 or more	2 to 4 years
Attorney review of all of the above	Often $500 to $2,500	1 to 2 weeks

Fees change; confirm on the USPTO, Copyright Office and state websites before paying.

What I will not claim: that the name is cleared, that anything is patented, or that this packet makes you fully legally protected. It gets you organized and ready to finish with a professional.